

25STCV19899 25STCV19899

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TENTATIVE RULING

HEARING DATE: 08/03/2026

CASE NUMBER: 25STCV19899

CASE NAME: SHERYELL PINKNEY vs FCA US LLC, et al.

MOVING PARTY: Defendant FCA US LLC

OPPOSING PARTY: Plaintiff Sheryell Pinkney

PROCEEDING: Demurrer

MOVING PAPERS: 01/23/2026

OPPOSITION: 04/22/2026

REPLY: 04/28/2026

RULING SUMMARY: Defendant FCA US, LLC's Demurrer is sustained with leave to amend as to the Sixth Cause of Action (Fraudulent Concealment – Inducement); and overruled as to the First Cause of Action (Violation of Subdivision (d) of Civ. Code § 1793.2), Second Cause of Action (Violation of Subdivision (b) of Civ. Code § 1793.2), Third Cause of Action (Violation of Subdivision (a)(3) of Civ. Code § 1793.2), and Fourth Cause of Action (Breach of the Implied Warranty of Merchantability (Civ. Code §§ 1791.1, 1794, 1795.5)).

Plaintiff Sheryell Pinkney is to file an amended pleading within _____ days of this Court Ruling. The Court continues the Case Management Conference to _____, 2026, at 8:30AM, and sets an Order to Show Cause re Amended Complaint for the same date and time.

Background

On June 30, 2025, plaintiff Sheryell Pinkney ("Plaintiff") filed her Complaint against defendants FCA US LLC ("FCA") and Aaron Chrysler Dodge Jeep Ram ("Aaron Chrysler"), alleging six causes of action for (1) Violation of Subdivision (d) of Civ. Code § 1793.2 against FCA; (2) Violation of Subdivision (b) of Civ. Code § 1793.2 against FCA; (3) Violation of Subdivision (a)(3) of Civ. Code § 1793.2 against FCA; (4) Breach of the Implied Warranty of Merchantability (Civ. Code §§ 1791.1, 1794, 1795.5) against FCA; (5) Negligent Repair against Aaron Chrysler; (6) Fraudulent Inducement Concealment against Defendant FCA.

Plaintiff

alleges the following: On or about November 30, 2017, Plaintiff entered into a warranty contract with FCA regarding a 2018 Chrysler 300 with vehicle identification number 2C3CCAAG5JH190675 (the "Subject Vehicle"), manufactured and/or distributed by FCA; the warranty contract included various warranties; defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to an engine defect; FCA had a duty to promptly offer to repurchase or replace the Subject Vehicle at the time it failed to conform the Subject Vehicle to the terms of the express warranty after a reasonable number of repair attempts; and FCA did not do so. Regarding Aaron Chrysler, Plaintiff alleges a theory of negligent repair.

On December 22, 2025, Plaintiff filed her First Amended Complaint ("FAC"), alleging the same causes of action against FCA and Aaron Chrysler.

On January 23, 2026, FCA filed this Demurrer. On April 22, 2026, Plaintiff filed her Opposition. On April 28, 2026, Defendant filed its Reply.

MEET

AND CONFER

Before

filing a demurrer or motion to strike, the moving party is required to meet and confer with the party who filed the pleading demurred to, in person or telephonically, to determine whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. §§ 430.41, 435.5.)

The

meet and confer requirement has been met. (Decl. Andrew S. Gahan at ¶ 2.)

LEGAL

STANDARD

A.

Demurrer

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc. § 430.30(a); Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

B.

Leave to Amend

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.) “A trial court does not abuse its discretion when it

sustains a demurrer without leave to amend if either (a) the facts and the nature of the claims are clear and no liability exists, or (b) it is probable from the nature of the defects and previous unsuccessful attempts to plead that the plaintiff cannot state a claim.” (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 889.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.)

DISCUSSION

FCA demurs to the all causes of action within the FAC.

A.

Statute of Repose Argument

The

first issue presented is whether the statutory deadlines under sections 871.20 and 871.21 of the Code of Civil Procedure create a bar to the Song-Beverly Act claims as the Complaint was filed on June 30, 2025, approximately six months after the new statutes were imposed. Defendant directs this argument at Plaintiff’s First through Fourth Causes of Action.

Section

871.21 provides, in pertinent part:

(a) An action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty.

(b) Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.

Section 871.20

identifies the causes of action which fall under section 871.21, providing in relevant part:

(a) [T]his chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed

under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.

(b) This chapter does not apply to service contract claims under Section 1794 of the Civil Code or any action seeking remedies that are not restitution or replacement of a motor vehicle.

Plaintiffs'

First, Second, and Third Causes of Action are brought under sections 1793.2(d), 1793.2(b), and 1793.2(a)(3) of the Civil Code.

Subdivisions (b) and (d) of section 1793.2 are expressly covered under the plain language of section 871.20(a). As such, Plaintiffs' First Cause of Action (Violation of Subdivision (d) of Civ. Code § 1793.2) and Second Cause of Action (Violation of Subdivision (b) of Civ. Code § 1793.2) must have been "commenced within one year after the expiration of the applicable express warranty." (Code Civ. Proc. § 871.21(a).)

Section

1793.2(a)(3) states that "[e]very manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall . . . [m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Civ. Code, §1793.2(a)(3).)

The

remedies for violation of this section are in section 1794 of the Civil Code.

Plaintiff

alleges:

Defendant FCA's failure to comply with its obligations under Civil Code section

1793.2, subdivision (a)(3) was willful, in that Defendant FCA knew of its obligation to provide literature and replacement parts sufficient to allow its repair facilities to effect repairs during the warranty period, yet Defendant FCA failed to take any action to correct its

failure to comply with the law. Accordingly, Plaintiff is entitled to a civil penalty of two times Plaintiff's actual damages, pursuant to Civil Code section 1794(c).

(FAC at ¶ 80.)

Claims

for the enforcement of warranties under section 1794 explicitly fall within the covered claims defined by Code of Civil Procedure section 871.20(a). Thus, Plaintiff's Third Cause of Action (Violation of Subdivision (a)(3) of Civ. Code § 1793.2) fall within the scope of section 871.21 and must have been "commenced within one year after the expiration of the applicable express warranty." (Code Civ. Proc. § 871.21(a).)

Section

871.21 of the Code of Civil Procedure was operative at the time that Plaintiff filed this action on June 30, 2025. Plaintiffs' argument that Defendant had not opted into the new procedures at the time this action was filed is unavailing, because the opt-in requirement for manufacturers was not in effect at the time Plaintiff filed this action in June 2025. (Cal. Code Civ. Proc. §§ 871.20, 871.29, 871.30 [effect of opt-in clause effective April 2025].) Senate Bill 26 pushed back the effective date of the opt-in provision from April 1 2025 to July 2025. Thus, FCA did not need to opt-in for section 871.21 of the Code of Civil Procedure to be effective when Plaintiffs filed this action.

Plaintiffs'

contention that section 871.21 cannot be retroactively applied is also unavailing. Section 871.30(a) of the Code of Civil Procedure expressly permits a manufacturer to elect to be governed by Chapter 12 for all actions described in section 871.20(a) "with respect to all of its motor vehicles sold in the year 2025 and in all prior years by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs." (Code Civ. Proc. § 871.30(a).) As discussed above, the opt-in provision was not in effect at the time of this filing; however, alternatively, after the opt-in provision came into effect, once FCA opted in pursuant section 871.29 of the Code of Civil Procedure, the Subject Vehicle was subject to these provisions. (Code Civ. Proc. § 871.30.) Accordingly, Plaintiff has not demonstrated that the applicable statute of repose does not govern the limitations period for at least the first and second causes of action.

The

Court next turns to applying the applicable statute of limitations to the allegations at hand.

As

alleged, Plaintiff entered into the warranty contract with Defendant on or about November 30, 2017 (FAC ¶ 7), and “(d)efects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to engine defects, transmission defects, electrical defects, among other defects and non-conformities” (FAC ¶ 21). It appears that the issue alleged is an engine defect. (FAC ¶¶ 11, 24-25.) Plaintiff includes the relevant warranty in the Complaint as Exh. A. Exh. A provides the following:

2.4 Powertrain Limited Warranty

A. Who Is Covered?

You are covered by the Powertrain Limited Warranty if you are a purchaser for use of the vehicle.

B. What's Covered

The Powertrain Limited Warranty covers the cost of all parts and labor needed to repair a powertrain component listed in section 2.4 E below that is defective in workmanship and materials.

C. How Long It Lasts

The Powertrain Limited Warranty lasts for up to five years or 60,000 miles on the odometer, whichever occurs first, calculated from the start date of the Basic Limited Warranty, as set forth in Section 2.1 E.

(Exh. A
at p.9.)

The

Court uses the Powertrain Limited Warranty for calculations as it (1) covers the engine in which the defect is alleged, and (2) is the longer warranty as

compared with the Basic Limited Warranty. (Compare Exh. A p.6 and p.9.)

The Complaint

does not allege the mileage of the Subject Vehicle, and the Court uses the years to compute the statute of limitations. Five years from November 30, 2017 is November 30, 2022. Thus, the statute of limitations for both the powertrain appears to have expired November 30, 2022.

With

respect to the three causes of action subject to Section 871.21, Plaintiff contends that equitable tolling should be applied. Section 871.21(c) describes those circumstances under which a court "shall" toll the time limitations, and not those circumstances under which a court may toll the time limitations. The Court finds that Section 871.21(c) does not preclude tolling for equitable tolling under the appropriate circumstances.

As

alleged, no dates are given for when the Discovery Rule Tolling begins (FAC at ¶¶ 13-30, 51-16); Plaintiff's allegations show that Plaintiff was put on notice of potential issues in the Subject Vehicle sometime during the express warranty period (FAC ¶ 21); and no amount of time is provided for the time the Subject Vehicle was out of service by reason of repair for any nonconformity (Code Civ. Proc. § 871.21; see also FAC ¶¶ 57-60). However, class action tolling is integrated into Plaintiff's Song-Beverly claims as Plaintiff has identified Maugain, et al. v. FCA US LLC, Case No. 1:22-cv-00116 (D.Del.) filed Jan. 28, 2022, which concerns FCA's 3.6L engines. (FAC at ¶ 50.) Likewise, the Court believes estoppel applies as Plaintiff has specifically pleaded facts that, if proved, would support the theory, in the form of representations from FCA's repair facility, that the Subject Vehicle had been repaired and was working as described. (Mills v. Forestex Co. (2003) 108 Cal.App.4th 625, 641; see FAC ¶¶ 15-16, 62-63.)

Accordingly,

the Demurrer to First Cause of Action (Violation of Subdivision (d) of Civ. Code § 1793.2), Second Cause of Action (Violation of Subdivision (b) of Cal. Civ. Code § 1793.2), and Third Cause of Action (Violation of Subdivision (a)(3) of Cal. Civ. Code § 1793.2) is overruled.

B.

Implied Warranty Statute of
Limitations Argument

Defendant does not argue that the Fourth Cause of Action for Breach of Implied Warranty is subject to Section 871.21. Rather, Defendant argues that Plaintiff's implied warranty claims are subject to a four-year statute of limitations. (Comm. Code, § 2725; *Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495.)

The argument turns on *Mexia v. Rinker Boat Co.* (2009) 174 Cal.App.4th 1297 ("Mexia"). In *Mexia*, the appellate court held that the duration provision of Civil Code section 1791.1(c) did not limit when a defect must be discovered for purposes of the implied warranty, but instead, limited the period during which the implied warranty existed: "[T]he plain language of the statute, particularly in light of the consumer protection policies supporting the Song-Beverly Act, make clear that the statute merely creates a limited, prospective duration for the implied warranty of merchantability; it does not create a deadline for discovering latent defects or for giving notice to the seller." (Id. at 1301.)

"The duration provision provides, in essence, that the duration of the implied warranty of merchantability shall be the same as the duration of any reasonable express warranty that accompanies the product, but in no event shorter than 60 days or longer than one year. (Civ. Code, § 1791.1, subd. (c).) There is nothing that suggests a requirement that the purchaser discover and report to the seller a latent defect within that time period." (*Mexia*, supra, 174 Cal.App.4th at 1310.)

"The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale. . . . Indeed, "[u]ndisclosed latent defects ... are the very evil that the implied warranty of merchantability was designed to remedy." . . . In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery." (Id. at 1304-1305.)

"A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered." (Com.

Code, § 2725, subds. (1), (2); Mexia, supra, 174
Cal.App.4th at 1305-1306 [emphasis added].)

On the face of the FAC, the
discovery of the alleged defects occurred sometime during the applicable
express warranty period. (FAC ¶ 21.) However, both class action tolling and equitable
tolling in the form of estoppel are alleged, as discussed above, and in light
of the tolling, the assertion of this cause of action is timely.

Accordingly, the Demurrer to the
Fourth Cause of Action (Breach of Implied Warranty of Merchantability (Cal.
Civ. Code §§ 1791.1, 1794, 1795.5)) is overruled.

C.
Sixth Cause of Action (Fraudulent
Inducement-Concealment)

1.
Statute of Limitations

FCA's statute of limitations
argument as to the Sixth Cause of Action is premised on the three-year statute
of limitations set out in Code of Civil Procedure section 338. The gravamen of
FCA's argument is that Plaintiff has not pled any facts to establish the
tolling doctrine.

As discussed above, this is not
the case as both class action tolling and equitable tolling in the form of
estoppel are alleged.

The statute of limitations does
not provide a ground to sustain the Demurrer to the Sixth Cause of Action (Fraudulent
Concealment – Inducement).

2.
Specificity

To state a claim for fraudulent
concealment, a plaintiff may plead and prove “a relationship . . . sufficient
to give rise to a duty to disclose.” (Bigler-Engler v. Breg, Inc. (2017))

7 Cal.App.5th 276, 314 (“Bigler-Engler”).) Transactional privity is the simplest such relationship. (E.g. Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844.) But it may also consist of “advertising, or . . . direct monetary benefit[.]” (Bader v. Johnson & Johnson (2022) 86 Cal.App.5th 1094, 1132 [citing Bigler-Engler, supra, at 311].) “Under California law, a vendor has a duty to disclose material facts not only to immediate purchasers, but also to subsequent purchasers when the vendor has reason to expect that the item will be resold. [Citations.]” (OCM Principal Opportunities Fund, L.P. v. CIBC World Markets Corp. (2007) 157 Cal.App.4th 835, 859, italics in original [defendant investment bank prepared false offering memorandum for notes purchased by plaintiffs].) As a result, “a manufacturer of a product may [generally] be liable for fraud when it conceals material product information from potential users.” (Khan v. Shiley Inc. (1990) 217 Cal.App.3d 848, 858 [heart valve manufacturer concealed defects, sued by injured patient post-surgery].) “ ‘It is not necessary that the maker of the representation ‘have any particular person in mind. It is enough that he intends or has reason to expect to have it repeated to a particular class of persons and that the person relying upon it is one of that class.’” (Barnhouse v. City of Pinole (1982) 133 Cal.App.3d 171, 191–192, internal citations omitted [home developer liable to ultimate home purchasers despite no privity].) Plaintiff has pled a relationship sufficient to establish a duty to disclose: that FCA derived direct monetary benefit from the sale of the Subject Vehicle, and that it had reason to expect the Subject Vehicle would ultimately end up in the hands of purchasers, like Plaintiff. (FAC ¶¶ 4, 12, 91-98.)

Addressing FCA's specificity

argument, a concealment cause of action has a more relaxed specificity requirement as compared to a claim based on affirmative misrepresentations; the rule of specifically pleading how, when, where, to whom and by what means, misrepresentations were communicated is intended to apply to affirmative misrepresentations and not to concealment. (Alfaro v. Community Housing Improvement System & Planning Assn, Inc. (2009) 171 Cal.App.4th 1356, 1384.) The relaxed standard relies on the natural logic that a plaintiff cannot specifically plead a fraud committed by omission, because there is no “how, when”, etc., for a plaintiff identify. (See *ibid.*) Here, Plaintiffs allege that the engine defect (defective 3.6L engine posing a safety risk) was known by FCA and concealed during specific transactions between Plaintiff and FCA's agents. (FAC ¶¶ 34-35, 62, 94.)

However, FCA's argument that the FAC lacks factual allegations as to the Subject Vehicle manifesting the defect itself is persuasive. Plaintiff alleges that engines installed in vehicles like the Subject Vehicle may suffer from "one or more defects that can result in loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine." (FAC ¶¶ 25, 92.) The FAC does not allege that the Subject Vehicle actually experienced any of those symptoms, was diagnosed with the alleged Engine Defect, was presented for repairs because of the defect, or otherwise actually contained or manifested the defect. Alleging that the Engine Defect can occur in vehicles equipped with a 3.6L engine does not, without additional facts, establish that the Subject Vehicle was defective. Further, without these factual allegations, Plaintiff's FAC is distinguished from those found sufficient in *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 ("Dhital").^[1] In *Dhital*, at least three repair attempts were described. (Id. at 833 ["On three occasions in 2015, plaintiffs took the car to an authorized Nissan repair facility because of transmission problems, including stalling, jerking, and lack of power."].)

Plaintiff has not sufficiently alleged that FCA concealed a material fact concerning the Subject Vehicle or that the alleged omission caused him to purchase a defective vehicle and sustain resulting damage.

There is a reasonable possibility that Plaintiff can cure these deficiencies by alleging symptoms experienced by the Subject Vehicle, repair presentations or attempts, or other facts showing that the alleged engine defect existed in or manifested in the Subject Vehicle.

The Demurrer to the Sixth Cause of Action (Fraudulent Concealment – Inducement) premised on specificity is sustained with leave to amend.

Conclusion

Defendant

FCA US, LLC's Demurrer is sustained with leave to amend as to the Sixth Cause of Action (Fraudulent Concealment – Inducement); and overruled as to the First Cause of Action (Violation of Subdivision (d) of Civ. Code § 1793.2), Second

Cause of Action (Violation of Subdivision (b) of Civ. Code § 1793.2), Third Cause of Action (Violation of Subdivision (a)(3) of Civ. Code § 1793.2), and Fourth Cause of Action (Breach of the Implied Warranty of Merchantability (Civ. Code §§ 1791.1, 1794, 1795.5).

Plaintiff

Sheryell Pinkney is to file an amended pleading within _____ days of this Court Ruling. The Court continues the Case Management Conference to _____, 2026, at 8:30AM, and sets an Order to Show Cause re Amended Complaint for the same date and time.

Date: 08/03/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court

[1]

Dhital, at one point, was in question by Supreme Court, and review was granted. The review was subsequently dismissed on December 18, 2024, effectively affirming the holding of Dhital for present purposes.